

Court No. - 14

Case :- U/S 482/378/407 No. - 299 of 2020

Applicant :- Kranti Gupta

Opposite Party :- State Of U.P. & Another

Counsel for Applicant :- Anuj Dayal

Counsel for Opposite Party :- Govt. Advocate

Hon'ble Chandra Dhari Singh,J.

Heard learned Counsel for the petitioner as well as learned A.G.A. and perused the record.

The instant petition under Section 482 of Cr.P.C. has been filed for quashing of the entire proceedings of Case No.145 of 2019 (State Vs. Kanti Gupta) arising out of Case Crime No.216 of 2018, under Section 135 (b) of the Electricity Act, 2003 at Police Station Sandeela, District Hardoi pending in the Court of learned Special Judge, E.C. Act, Hardoi.

Learned Counsel for the petitioner has submitted that an F.I.R. was lodged on 04.07.2018 in respect to an incident which is said to have taken place on 03.07.2018. It is alleged in the FIR that the informant and the Executive Engineer including other officials of Electricity Department and police personnel came to the flour mill of the applicant and at the time of inspection, the seal of C.T. Chamber was found to be tampered and the wires were found loose. The seal of C.T./ P.T. unit is also found tampered.

Learned Counsel for the petitioner has further submitted that the mandatory provisions of the statute has not been followed by the Investigating Agency and without collecting any incriminating material, the charge-sheet has been filed and the court below without considering the same has taken cognizance which is not permissible in law. As per the allegations only seal was found to be tampered and on the basis of tampered seal criminal proceedings cannot be initiated.

Learned Counsel for the petitioner has also submitted that while passing the cognizance order, the court below has also not considered the terms of Clause 8.1 of Uttar Pradesh Electricity Supply Code, which provides that if any tampering/ theft is reported, the meter shall be removed and tested. Clause 8.1(b) provides that merely on the basis of breakage of seal, no proceedings of theft can be initiated and neither the alleged tampered meter was seized nor tested which is also mandatory requirement under Clauses 5.6 (c) and (d).

Learned Counsel for the petitioner has again submitted that from the records, it appears that the Investigating Agency has

not followed the procedure as prescribed. There is no evidence which proves that the petitioner is involved in tampering of the seal of electricity meter. The entire proceedings have been initiated on the behest of the informant. The proceeding is nothing but an abuse of the process of the Court. Hence, the petition is liable to be allowed and the abovesaid proceedings are liable to be quashed.

Per contra, learned A.G.A. has vehemently opposed the contentions made by learned Counsel for the petitioner and submitted that on the earlier occasion, the petitioner has filed a petition under Section 482 of Cr.P.C. for quashing of the summoning order, which was rejected by a co-ordinate Bench of this Court vide order dated 09.09.1990 (Annexure-1 to the petition). The charge-sheet has been filed by the Investigating Agency after collecting the sufficient material against the petitioner and the court below has rightly taken the cognizance and issued summoning order. There is no force in the argument advanced by learned Counsel for the petitioner and the petition is liable to be dismissed.

I have considered the submissions of learned Counsel for the parties and perused the record.

Admittedly, the petitioner had approached this Court challenging the summoning order dated 18.07.2019 and the order dated 19.08.2019 passed by the learned Additional District Judge in the abovesaid case. The said petition bearing No.6385 of 2019 (under Section 482 of Cr.P.C.) was dismissed vide order dated 09.09.2019. Learned Counsel for the petitioner has failed to point out that there is any abuse in the process of law and there is no cogent evidence against him.

The submissions made by the learned Counsel for the petitioner call for adjudication on pure questions of fact which may be adequately adjudicated upon only by the trial court and while doing so even the submissions made on points of law can also be more appropriately gone into by the trial court in this case. This Court does not deem it proper, and therefore cannot be persuaded to have a pre-trial before the actual trial begins. I do not find any justification to quash the proceedings against the petitioner arising out of them as the case does not fall in any of the categories recognized by the Apex Court which may justify their quashing.

Accordingly, the petition under Section 482 of Cr.P.C. is ***dismissed***.

Order Date :- 20.1.2020/akverma